

**BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS and
THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS**

STATE OF COLORADO

Case Nos. 2016-5408, 2016-5504, 2017-4846 & 2017-4859

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE CERTIFICATE TO
PRACTICE AS AN ADDICTION COUNSELOR IN THE STATE OF COLORADO OF STEPHANIE
RINK, CERTIFICATE NO. CAC III 6522, and**

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF STEPHANIE RINK,
LICENSE NO. LPC 4648,**

Respondent.

**IT IS HEREBY STIPULATED by and between the State Board of Addiction
Counselor Examiners and the State Board of Licensed Professional Counselor
Examiners ("Boards") and Stephanie Rink, CAC III, LPC ("Respondent"), as follows:**

- 1. The Boards have jurisdiction over Respondent and the subject matter of
this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was certified to practice as a certified addiction counselor III
("CAC III") in the State of Colorado at all times relevant herein.**
- 3. Respondent was licensed to practice as a licensed professional counselor
("LPC") in the State of Colorado at all times relevant herein.**
- 4. This Order is a full and final resolution of case numbers 2016-5408, 2016-
5504, 2017-4846, and 2017-4859. This Order does not resolve any other cases,
complaints, or matters, known or unknown to the Board or Respondent, as of the
effective date of this Order.**

5. Respondent admits the following:

- a. In or about 2016, Respondent became the caretaker for a former client who was terminally ill.
- b. Respondent attended the medical appointment of a client.
- c. Respondent maintained incomplete and insufficient client records.
- d. On or about January 12, 2018, Respondent underwent a mental status examination with Peer Assistance Services, Inc. ("PAS").
- e. A urine drug test conducted at the time of the examination was positive for THC.

6. By virtue of the facts admitted in paragraph 5 above, the Board finds that Respondent violated §12-43-222(1)(e), (i) and (u), C.R.S., which states:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102 (5), C.R.S.;

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(u) Has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

By virtue of the admissions contained in paragraphs 5 and 6, Respondent is subject to the following disciplinary sanctions that the Board believes are necessary to protect the public health, safety, and welfare.

PEER ASSISTANCE SERVICES

- 7. As a term of this Order, Respondent shall enter into and successfully complete her PAS Contract for a period of two (2) years, or until successful completion of the terms and conditions ordered herein, whichever occurs later.**

8. Respondent shall enter into her PAS Contract within fourteen (14) days from the effective date of this Order. Respondent agrees to cease the practice of addiction counseling after fourteen (14) days until such time as Respondent enters into a contract with PAS.

a. Urine/Blood Screens. Respondent shall submit to random full panel urine or blood tests for a period of two (2) years beginning from the effective date of the PAS Contract. Respondent may petition the Board for release from this condition after one (1) year of compliance with the terms of this subsection (a). All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's monitoring with Respondent's application for release from the PAS Contract.

b. Medication Monitoring. Respondent shall undergo monitoring of compliance with prescribed medication with her primary care physician, at a frequency and duration to be determined by the primary care physician.

c. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Board upon its request. Respondent shall keep all releases current and in effect.

d. Completion of Program. If Respondent satisfactorily completes the monitoring, verification to the Board by PAS of the completion of monitoring shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Respondent's completion of monitoring. It is Respondent's responsibility to ensure that PAS submits verification to the Board of completion of monitoring.

e. Withdrawal from Program. Respondent must immediately notify the Board in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's monitoring.

CONTINUING EDUCATION

9. Within twenty-four (24) months of the effective date of this Order, Respondent must complete ten (10) hours each of Board-approved professional continuing education ("CE") courses in the areas of professional ethics, record keeping, and boundaries. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory professional Continuing Professional Development requirements for an active Colorado certification or license, or to meet any other certification or licensure requirements.

TERMS AND CONDITIONS

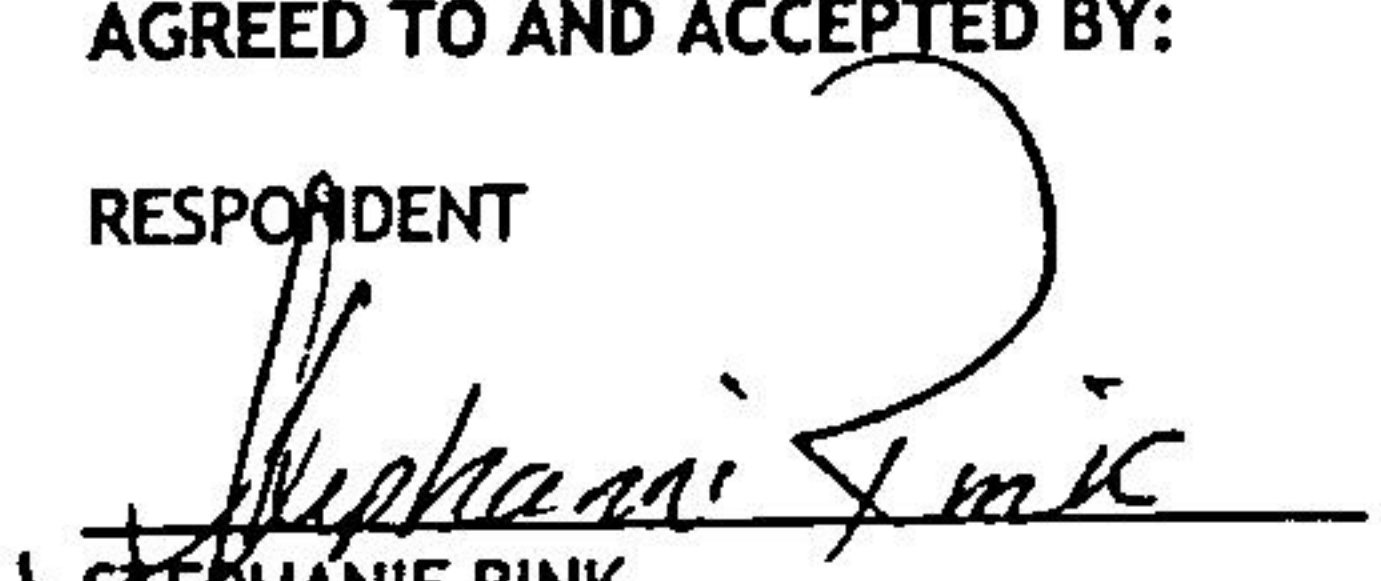
10. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.
11. All expenses incurred or associated with the educational requirements or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.
12. In the event Respondent relocates at any time during the monitoring period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.
13. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.
14. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
15. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.
16. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the

same force and effect as an order entered after a formal hearing pursuant to 5512-43-212, 12-43-224, and 24-4-104(9), C.R.S.

17. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.
18. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
19. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.
20. This Order shall be admissible as evidence at any hearing held before the Board.
21. This Order shall be a public record in the custody of the Board.

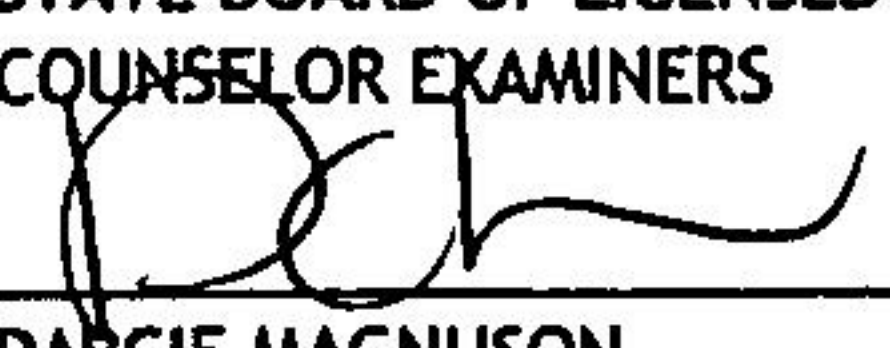
AGREED TO AND ACCEPTED BY:

RESPONDENT


STEPHANIE RINK
CAC III 6522
LPC

AGREED TO AND ORDERED BY:

STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS and
STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 22nd day of
May, 2018.